

this order. Counsel are ordered to provide copies of all discovery motions and responses to the Discovery Referee within five (5) days of appointment.

6. The Clerk of Court shall vacate Plaintiff's discovery motion calendared for June 24, 2026. All future discovery disputes shall be referred to the Discovery Referee until further order of the Court.

7. The Parties are ordered to meet and confer and take all necessary steps to implement this order forthwith.

8. No appearance is required at the hearing on June 24, 2026.

19. 9:01 AM CASE NUMBER: C25-00694

CASE NAME: ELIZABETH HILAMAN VS. MCDONALD'S USA, LLC

***HEARING ON MOTION FOR DISCOVERY AN ORDER QUASHING SUBPOENA, OR IN THE ALTERNATIVE, FOR PROTECTIVE ORDER**

FILED BY: MCDONALD'S USA, LLC

TENTATIVE RULING:

Summary

Defendant McDonald's Corporation filed a motion to quash two subpoenas on March 23, 2026, or, in the alternative, requested a protective order, and monetary sanctions in the amount of \$1,925.00. The motion is denied as **moot**.

The Court is inclined to grant, *sua sponte*, Plaintiff's attorney's fees and costs for having to prepare a response and briefing for an unnecessary motion that should have been removed from this Court's already impacted motion calendar. Defendant's counsel is ordered to appear by Zoom and to show cause as to why counsel failed to withdraw these Motions from the Court's calendar upon withdrawal of the subpoenas by Plaintiff.

Background

According to the filings submitted to the Court, on April 23, 2026 Plaintiff Elizabeth Hilaman withdrew the two subpoenas subject to Defendant's Motion to Quash. Plaintiff thereafter informed Defendant that the subpoenas had been withdrawn and requested that Defendant take its motion off calendar. Defendant did not withdraw this motion.

As the subpoenas were withdrawn prior to hearing, there is no subpoena remaining for this Court to quash and no basis for a protective order. Likewise, sanctions are unwarranted. Plaintiff voluntarily withdrew the subpoenas after Defendant raised objections, thereby providing Defendant the precise relief it requested during the meet-and-confer process. Defendant cannot demonstrate bad faith, oppression, or a lack of substantial justification as required under Code of Civil Procedure section 1987.2.

Ruling

1. Defendant's Motions are denied as **moot**.
2. Plaintiff's Counsel is ordered to prepare a brief declaration outlining fees and costs for having

to prepare an opposition to this Motion.

3. Defendant's Counsel is ordered to appear via Zoom on June 24, 2026 and is ordered to show cause why counsel did not withdraw this Motion upon withdrawal of the subpoenas by Plaintiff and why the Court should not require Defendant to pay for Plaintiff's fees and costs for having to prepare a briefing and opposition to an unnecessary motion.

20. 9:01 AM CASE NUMBER: C25-01525

CASE NAME: MARAT VALIULLIN VS. DAVID STALLWORTH

***HEARING ON MOTION FOR DISCOVERY QUASH DEPOSITION SUBPOENAS FOR PRODUCTION OF BUSINESS RECORDS ISSUED TO THIRD PARTY PROVIDERS, OR IN THE ALTERNATIVE, FOR LIMITING THE SCOPE OF THE SUBPOENAS**

FILED BY: VALIULLIN, MARAT

TENTATIVE RULING:

Summary

Plaintiff Nataliya Muravskaya's Motion to Quash Deposition Subpoenas or, in the alternative, to limit their scope, is **granted** in part as set forth herein.

Background

This case arises out of a motor vehicle accident that occurred on March 31, 2024. Plaintiffs allege that Defendant David Lee Stallworth operated his vehicle negligently, knowing that he suffered from epileptic seizures, one of which caused the incident. Nataliya claims to have suffered injuries from this accident and received treatment at Kaiser Hospital. Defendant issued subpoenas demanding over ten years of medical, billing, insurance, and administrative records (from January 1, 2014 to present) for all plaintiffs. Prior to the production date, Plaintiff's counsel served objections and engaged in meet-and-confer discussions.

Nataliya now seeks to quash or limit deposition subpoenas for records issued by Defendant to third-party medical providers regarding her records. While co-plaintiffs Marat Valiullin and Ruslan Valiullin reached agreements limiting their records to nine years and four years prior to the accident respectively, Nataliya Muravskaya's objection to the ten-year scope remained unresolved.

Despite her offer to produce five years of records (later refined to three years prior to the accident), defense counsel rejected this limitation, citing her age and claimed injuries. Plaintiff asserts that these subpoenas should be quashed because they (a) demand an overbroad ten-year sweep of unrestricted medical history; (b) lack any limitation by body part, diagnosis, or condition; (c) constitute an improper wholesale production of confidential medical information unrelated to the specific injuries placed at issue in the litigation; (d) violate Plaintiff's constitutional right to privacy under Article I, Section 1 of the California Constitution; and (e) fail to meet the narrow tailoring requirements under California law.

In the alternative, Plaintiff requests an order limiting the scope of Nataliya's records to those (a) specifically relating to atypical chest pain, headaches, vertigo, and depression allegedly arising from the collision; (b) within a temporal scope of March 31, 2021 through March 31, 2026 (three years prior to and two years following the incident); and (c) excluding unrelated medical conditions, specialty departments, and administrative records not directly relevant to the claimed injuries.